



File No.: EXP202313644

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on September 18, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 18, 2023, a complaint was filed with this Agency by Mr. A.A.A. (hereinafter, the complainant) against the COMMUNITY OF PROPERTY OWNERS B.B.B. (hereinafter, the respondent) for not having properly addressed his right of access to his personal data.

The complainant states that, by email dated 09/08/2023, he requested the right of access from the respondent, receiving a denial response dated August 23, 2023, under the provisions of art. 12.5.b) of the GDPR. They indicate that on 30/01/2023 he requested the right of access from the administrator, having received a response. Furthermore, on April 10 and 13, 2023, he again requested the right of access from the president, who responded on 14/06/2023.

The complainant expresses that he wishes to "know in detail any type of communication to companies or any type of third parties or public institutions, what type of personal data has been shared and for what purpose." He considers the response given by the administrator on 30/01/2023 to be incomplete, and that his personal data has been transferred without his consent to third parties, to a lawyer who has sent him an email. He points out that the responses received do not comply with the provisions of art. 15 of the GDPR, among others, he has not been informed of the data recipients.

SECOND: The respondent indicated in the response to the transfer of the complaint carried out by this Agency that, as a preliminary matter, in File No.: EXP202307636, on June 26, 2023, the same questions were answered, and a notification was received on August 3, 2023, in which it was agreed not to admit the complaint for processing, requesting that said file be reproduced.

It informs that, since January 30, 2023, they have been receiving emails from the complainant regarding the exercise of rights to which they have been responding, and that the respondent has been the subject of a previous complaint that was closed on August 3, 2023, with the result of non-admission for processing.

It communicates that the email dated January 30, 2023, was answered by the administrator via email on the same date. Subsequently, on April 10 and 13, 2023, he again requested the right of access from the...

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president, and on this last date, also the right of erasure; both of which were responded to on June 14, 2023. It is stated that on this date, June 14, the right of access was requested again, which was responded to on June 26, informing once again about the right of erasure and reiterating what had already been answered on January 30, 2023, as evidenced in the present complaint. Finally, it is asserted that on August 9, 2023, the complainant exercised the right of access again and was informed of the possibility of charging a fee.

Once the transfer of the complaint was received, on October 24, 2023, they proceeded to expand the response to the exercise of the right of access dated August 9, 2023, from the complainant. It is stated that there has been a continuous response to the exercises of rights since the beginning of this year, with the aim of ensuring that all rights of the complainant are guaranteed. Supporting documentation of the claims made is provided.

For the reasons stated, this Agency, in its resolution dated December 5, 2023, considered that the right had been addressed.

THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration arguing that the response received from the respondent is incomplete because it does not inform about the origin of the personal data being processed, does not specify the specific third parties to whom their personal data has been provided (including emails received from third companies), nor has all the information for the last 5 years up to August 8, 2023, inclusive, been provided.

The corresponding Reconsideration Procedure was instructed, in which the respondent was given a hearing, and on April 16, 2024, the Director of this Agency deemed the motion for reconsideration to be justified, as it was noted that the complainant had been informed that their personal data would be provided to certain categories of recipients, but it was not specified to which specific recipients they had been communicated according to the content of Article 15.1 of the GDPR, and therefore, the response to the right of access in accordance with this regulation was not substantiated.

FOURTH: As a consequence of the acceptance of the aforementioned Motion for Reconsideration, the present Rights Procedure was opened, transferring the documentation to the respondent, so that within a period of ten working days, they could present the allegations they deemed appropriate, stating, "(...) that having received on April 19, 2024, the transfer of the complaint for lack of attention in the request for the exercise of rights; and within the granted period of 10 working days, they proceed to rectify the response to the requested right of access, in the sense proposed by the Spanish Agency for Data Protection, and proceeding to inform the interested party not only of the category of recipients but also of the identity of the specific recipients," providing a copy of the document sent.

FIFTH: After examining the document submitted by the respondent, it is transferred to the complainant, so that, within a period of ten working days, they can formulate the allegations they consider appropriate, with no record in this Agency of any response having been submitted.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

The initiation of this procedure arises from the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the controller provides remote access to the data, with the request considered addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients

to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others.

V

Conclusion

The Judgment of the Court of Justice of the European Union (First Chamber), dated January 12, 2023, states that

“52. (...) In light of all the above, the Court of Justice (First Chamber) declares:

Article 15, paragraph 1, letter c), of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted as meaning that the data subject's right of access to personal data concerning them, established in that provision, implies, when those data have been or are to be communicated to recipients, the obligation of the data controller to provide that data subject with the identity of those recipients, unless it is not possible to identify them or unless the data controller demonstrates that the data subject's access requests are manifestly unfounded or excessive within the meaning of Article 12, paragraph 5, of Regulation 2016/679, in which case the data controller may only indicate to the data subject the categories of recipients concerned.”

In the case analyzed here, from the examination of the documentation provided, it has been established that the complainant requested access to their personal data, and that the initial response received was incomplete as the identity of the specific recipients to whom their personal data was provided was not disclosed. However, during the course of this procedure, the responding party has completed the exercise of that access by informing the complainant of the assignees of their data, proceeding to inform the data subject not only of the category of recipients but also of the identity of the specific recipients.

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Consequently, it is appropriate to uphold, for formal reasons, the complaint made as it has been addressed out of time, without requiring the performance of additional actions by the data controller in order to issue a new certification regarding the exercise of the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint made by Mr. A.A.A. against the COMMUNITY OF PROPERTY OWNERS B.B.B. However, it is not appropriate to issue a new certification by the responding party, as the response was issued out of time, without requiring the performance of additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the COMMUNITY OF PROPERTY OWNERS B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision

of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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Mar España Martí

Director of the Spanish Agency for Data Protection

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